

26LBCV00169 26LBCV00169

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-08-18

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Case Number: 26LBCV00169 Hearing Date: August 18, 2026 Dept: 25

Motions: Defendant American Honda Motor Co., Inc.'s Motion to Deem Plaintiff Yash Shah's Responses to Defendant's Requests for Admission, Set One, Admitted and Request for Monetary Sanctions

Moving Party: Defendant American Honda Motor Co., Inc. ("Defendant")

Responding Parties: Plaintiff Yash Shah ("Plaintiff")

Tentative Ruling

The court "shall" grant the motion to deem requests for admission admitted, "unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (Code Civ. Proc., § 2033.280, subd. (c).)

Although Plaintiff served unverified objection-only responses to Defendants' Requests for Admission, Set One, "an unverified response is tantamount to no response at all." (Melendrez v. Superior Court (2013) 215 Cal.App.4th 1343, 1348; Hurvitz Decl., ¶ 3, Ex. B.)

Provided that Plaintiff has provided supplemental objection-less responses with verifications prior to the instant motion hearing, the instant motion is DENIED as moot. (Thomas Decl., ¶ 3.) If objection-less responses with verifications have not been served, Plaintiff is ordered to provide verified objection-less responses within 10 days.

Sanctions are mandatory against the party, the attorney, or both whose failure to serve a timely response to the request necessitated the motion to deem request for admissions as admitted. (Code Civ. Proc., § 2033.280, subd. (c).) The Court awards Defendant monetary sanctions in the amount of \$1,635.00.